

9 & 10 Geo. 6.
c. 81.
10 & 11 Geo. 6.
c. 27.

provided under Part II of the National Health Service Act, 1946, or Part II of the National Health Service (Scotland) Act, 1947, shall be deemed to be ordinarily resident in the area, if any, in which he was ordinarily resident immediately before he was admitted as a patient to the hospital, whether or not he in fact continues to be ordinarily resident in that area."

(2) Subsection (7) of section twenty-nine of the said Act of 1948 (which, with a view to determining the local authority liable for any expenditure incurred, provides that a person engaged in work in such a workshop as is therein mentioned shall be deemed to be ordinarily resident in the area in which he was ordinarily resident immediately before he became engaged in the work) shall have effect, and, subject to subsection (3) of this section, be deemed always to have had effect, as if for the words "became engaged in the work" there were substituted the words "was accepted for work in that workshop; and for the purposes of this subsection a course of training in such a workshop shall be deemed to be work in that workshop".

(3) Nothing in this section shall authorise the recovery by any local authority from any other local authority after the date of the passing of this Act of any expenditure incurred before that date.

Citation
and extent.

2.—(1) This Act may be cited as the National Assistance (Amendment) Act, 1959, and this Act and the National Assistance Acts, 1948 and 1951, may be cited together as the National Assistance Acts, 1948 to 1959.

(2) This Act shall not extend to Northern Ireland

CHAPTER 31

An Act to empower the Minister of Agriculture, Fisheries and Food and the Secretary of State to make provision by regulations as to the payment of improvement grants under the Hill Farming and Livestock Rearing Acts, 1946 to 1956, and as to the payment of grants and contributions under certain other enactments; and for purposes connected therewith. [30th April, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purposes of the payment of improvement grants under the Hill Farming and Livestock Rearing Acts, 1946 to 1956, regulations made by the Ministers with the consent of the Treasury may provide that, in such cases and subject to such conditions as may be specified in the regulations, the cost of any work of a description specified in the regulations shall, if the applicant for a grant so elects, be taken to be such amount as may be so specified.

(2) Where, by virtue of any regulations made under the preceding subsection, the cost of any work is to be taken to be an amount specified in the regulations, subsection (1) of section two of the Hill Farming Act, 1946 (which provides that the amount of an improvement grant shall be one-half of the cost of the work so far as approved by the appropriate Minister as having been reasonably incurred) shall apply in relation to that work as if the words "so far as approved by the appropriate Minister as having been reasonably incurred" were omitted.

(3) If it appears to the appropriate Minister or Ministers that provision similar to that made by subsection (1) of this section should be made with respect to any of the enactments mentioned in the next following subsection, the appropriate Minister or Ministers, with the consent of the Treasury, may by regulations provide that, for the purposes of the payment of grants under that enactment, in such cases and subject to such conditions as may be specified in the regulations, the expenditure incurred or to be incurred in carrying out any work of a description specified in the regulations shall, if the applicant for a grant so elects, be taken to be expenditure of such amount as may be so specified.

(4) The said enactments are the following, that is to say—

- (a) section sixteen of the Agriculture Act, 1937 (which empowers the Secretary of State to make grants in respect of the drainage of, or supply of water to, agricultural land in Scotland, and in respect of the supply of water to agricultural dwelling houses there);
- (b) section fifteen of the Agriculture (Miscellaneous War Provisions) Act, 1940 (which empowers the Minister of Agriculture, Fisheries and Food to make grants in respect of the field drainage of agricultural land, the cleansing or other improvement of ditches on such land, and the supply of water thereto);
- (c) section three of the Pests Act, 1954 (which empowers the said Minister and the Secretary of State to contribute towards the cost of the destruction of pests or the taking of preventive measures).

(5) Any regulations made under this Act may contain such transitional, supplementary and incidental provisions as may appear to the Ministers or Minister making the regulations to be

necessary or expedient for the purposes thereof; and different provision may be made by any such regulations in relation to different classes of cases.

(6) The power to make regulations under this Act shall be exercisable by statutory instrument; and any instrument containing any such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment.

(8) In this Act "the Ministers" means the Minister of Agriculture, Fisheries and Food and the Secretary of State acting jointly; "the appropriate Minister or Ministers", in relation to section sixteen of the Agriculture Act, 1937, means the Secretary of State, in relation to section fifteen of the Agriculture (Miscellaneous War Provisions) Act, 1940, means the Minister of Agriculture, Fisheries and Food, and in relation to section three of the Pests Act, 1954, means the Ministers; and "grant" includes a contribution.

Short title,
citation and
extent.

2.—(1) This Act may be cited as the Agricultural Improvement Grants Act, 1959; and the Hill Farming and Livestock Rearing Acts, 1946 to 1956, and this Act may be cited together as the Hill Farming and Livestock Rearing Acts, 1946 to 1959.

(2) It is hereby declared that this Act, except subsections (3) and (4) of section one thereof, extends to Northern Ireland.

CHAPTER 32

An Act to make further provision for contributions by local authorities in Wales (including Monmouthshire) towards the expenses of the Royal National Eisteddfod.
[30th April, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The power conferred on a local authority by section one hundred and thirty-two of the Local Government Act, 1948, to contribute towards the expenses of an entertainment held in the area of another authority shall, in relation to a Royal National Eisteddfod, be exercisable by any local authority in Wales (including Monmouthshire), whether or not the place in which it is held is convenient for residents in their area, and whether or not the other authority consent.

Extension of
power to
contribute
towards
expenses of
Eisteddfod.

11 & 12 Geo. 6.
c. 26.